

M.C. Mehta v. Union of India (Oleum Gas Leak)

Citation: (1987) 1 SCC 395 | Court: Supreme Court | Year: 1987

Coram: 5-Judge Constitution Bench (P.N. Bhagwati CJI) | Subject: Environmental Law & PIL | Provisions: Articles 21 & 32, Law of Torts

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Formulated the revolutionary Doctrine of Absolute Liability in Indian tort and environmental jurisprudence. An enterprise engaged in a hazardous or inherently dangerous industry owes an absolute and non-delegable duty to the community, free from the exceptions of Rylands v. Fletcher.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Articles 21 & 32, Law of Torts. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€¢ Whether the impugned state actions or commercial conduct conformed to Articles 21 & 32, Law of Torts.
- â€¢ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

The 19th-century strict liability doctrine of Rylands v. Fletcher with its exceptions (act of god, sabotage) is inadequate for modern industrial risks. Compensation must be correlated to the magnitude and capacity of the enterprise to have a deterrent effect.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€¢ Created the Doctrine of Absolute Liability without exceptions in Indian law.
- â€¢ Expanded Article 32 remedial powers to grant damages for environmental torts.
- â€¢ Laid the legal groundwork for the Public Liability Insurance Act 1991.